

26NNCV00958 26NNCV00958

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-13

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Case Number: 26NNCV00958 Hearing Date: August 13, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT'S ANTI-SLAPP MOTION IN PART and DENYING IN PART and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

On February 2, 2026, Plaintiff Hari Raina ("Plaintiff") filed this action against Defendant Mark Anderson ("Defendant") arising from a dispute concerning the parties' 2012 Settlement Agreement and Defendant's subsequent efforts to enforce a default judgment entered against Plaintiff in Anderson v. Raina, Los Angeles Superior Court Case No. GC048852.

Plaintiff asserts causes of action for (1) declaratory relief, (2) breach of written contract, (3) breach of the implied covenant of good faith and fair dealing, (4) accounting, and (5) cancellation of instrument. Plaintiff generally alleges Defendant waived strict enforcement of the default judgment by accepting late payments under the Settlement Agreement for several years, but later renewed and sought to enforce the judgment.

On May 13, 2026, Defendant filed the instant anti-SLAPP motion. Plaintiff has not filed an opposition to the motion.

Request for judicial notice

The Court GRANTS Defendant's request for judicial notice of Exhibits A through J pursuant to Evidence Code sections 452, subdivision (d), and 453.

II. LEGAL STANDARD

CCP section 425.16 permits the court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim.

In assessing a defendant's CCP section 425.16 special motion to strike, the court must engage in a two-step process. (Shekhter v. Financial Indem. Co. (2001) 89 Cal.App.4th 141, 150.) First, the court must decide whether the defendant has met the threshold burden of showing that the plaintiff's cause of action arises from the defendant's constitutional rights of free speech or petition for redress of grievances. (Id.) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in section 425.16(e).

Once a defendant has met its initial burden and established that the anti-SLAPP statute applies, the burden shifts to the plaintiff to demonstrate a “probability” of success on the merits. (Code Civ. Proc., §425.16(b); *Equilon Enters. LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67.) “[T]he plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Matson v. Dvorak* (1995) 40 Cal.App.4th 539, 548 (internal quotations omitted).) At this “second stage of an anti-SLAPP hearing, the court may consider affidavits, declarations, and their equivalents if it is reasonably possible the proffered evidence set out in those statements will be admissible at trial. Conversely, if the evidence relied upon cannot be admitted at trial, because it is categorically barred or undisputed factual circumstances show inadmissibility, the court may not consider it in the face of an objection. If an evidentiary objection is made, the plaintiff may attempt to cure the asserted defect or demonstrate the defect is curable.” (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 949.)

The trial court properly considers the evidentiary submissions of both the plaintiff and the defendant, but it may not weigh the credibility or comparative strength of the evidence and must instead simply determine whether the plaintiff's evidence would, if believed by the trier of fact, be sufficient to result in a judgment for plaintiff. (*McGarry v. Univ. of San Diego* (2007) 154 Cal.App.4th 97, 108-09.) The court “accepts as true the evidence favorable to the plaintiff and evaluates the defendant's evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 326.) Further, whether or not the evidence is in conflict in the context of a motion to strike under the anti-SLAPP statute, if the plaintiff has presented a sufficient pleading and has presented evidence showing that a prima facie case will be established at trial, the plaintiff is entitled to proceed. (*Moore v. Shaw* (2004) 116 Cal.App.4th 182, 193.) Only a minimal showing of merit is required. (*Robinzine v. Vicory* (2006) 143 Cal.App.4th 1416, 1421.)

Request for Judicial notice

Defendant requests Judicial notice of the following documents:

Request for Civil Harassment Restraining Orders.

Declaration of Stacey Coombes

Declaration of Sylvia Laurmann

The court may take judicial notice of “official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States,” “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States,” and “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code § 452, subds. (c), (d), and (h).) The Request for Judicial Notice is DENIED as to Exhibits 1-3.

III. ANALYSIS

First prong: protected activity

“To prevail on an anti-SLAPP motion, the movant must first make ‘a threshold showing the challenged cause of action’ arises from an act in furtherance of the right of petition or free speech in connection with a public issue.” (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.) “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062.) “[T]he defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech.” (*Id.* at 1063 (quoting *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78) (emphasis in original).) “[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.” (*Id.* (quoting *Navellier v. Sletten* (2002) 29 Cal.4th 82, 89) (alteration in original).) “Instead, the focus is

on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’” (Id. (quoting *Navellier*, supra, 29 Cal.4th at 92) (alteration in original).)

A single cause of action may allege multiple claims based on both protected and unprotected activity. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393–394.) In such a “mixed cause of action,” the Court must determine whether the protected activity supplies an element of a claim for relief, rather than merely providing context or background. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1015.) Where a claim based on protected activity lacks minimal merit, the Court may strike that claim while leaving claims based on unprotected activity intact. (*Baral*, supra, 1 Cal.5th at pp. 393–396.) This claim-by-claim analysis applies even where the defendant moves to strike the entire cause of action. (*Bonni*, supra, 11 Cal.5th at p. 1011.)

“‘The only means specified in section 425.16 by which a moving defendant can satisfy that [‘arising from’] requirement is to demonstrate that the defendant’s conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)” (Id. (quoting *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66) (emphasis in original).) “In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by defendant supply those elements and consequently form the basis for liability.” (Id.)

Defendant argues Plaintiff’s entire Complaint arises from protected petitioning activity because the action challenges Defendant’s efforts to enforce a judgment previously entered against Plaintiff in *Anderson v. Raina*, Los Angeles Superior Court Case No. GC048852. Specifically, Defendant identifies his filing of a writ of execution and application for sale of Plaintiff’s dwelling as the protected conduct giving rise to Plaintiff’s claims. Defendant contends these filings constitute statements made in connection with an issue under consideration by a judicial body within the meaning of Code of Civil Procedure section 425.16, subdivision (e)(2), as well as conduct in furtherance of his constitutional right to petition under subdivision (e)(4). (Motion, pp. 7-9.)

Defendant further argues that his judgment-enforcement activities are protected by the litigation privilege and by his constitutional right to petition the courts. Based on these protections, Defendant contends the Complaint should be stricken in its entirety. (Motion, pp. 9-10, 12-13.)

The Complaint asserts five causes of action: (1) declaratory relief, (2) breach of written contract, (3) breach of the implied covenant of good faith and fair dealing, (4) accounting, and (5) cancellation of instrument. Defendant characterizes each claim as arising from Plaintiff’s attempt to prevent or impose liability for Defendant’s enforcement of the judgment, including the writ of execution and application for sale of dwelling. (Motion, pp. 4-5.)

First cause of action: declaratory relief

The Complaint alleges that an actual controversy exists concerning the parties’ respective rights and obligations under the Settlement Agreement and the Default Judgment. Specifically, Plaintiff contends that: (1) the Settlement Agreement remains the operative contract between the parties; (2) Defendant waived the right to enforce the Default Judgment by accepting years of late payments without objection; (3) Defendant is estopped from enforcing the Default Judgment based on a January 2015 written confirmation reflecting a lower outstanding balance; and (4) Plaintiff’s liability is limited to the unpaid balance under the Settlement Agreement. Plaintiff seeks a judicial declaration that the Settlement Agreement is valid and binding and supersedes the Default Judgment. (Complaint, ¶¶ 30-33.)

Here, Defendant has not shown that the declaratory relief cause of action arises from protected activity. Although Defendant’s subsequent efforts to enforce the Default Judgment, including the writ of execution and application for sale of dwelling, may have prompted Plaintiff to seek declaratory relief, the claim is based on the parties’ dispute concerning their respective contractual rights under the Settlement Agreement. In particular, Plaintiff’s waiver and estoppel theories are based on Defendant’s alleged acceptance of late payments and the January 2015 representation concerning the remaining balance, rather than Defendant’s protected judgment-enforcement activity.

Thus, Defendant has not met his burden under the first prong as to the first cause of action for declaratory relief.

Second cause of action: breach of written contract

The second cause of action alleges Defendant breached the Settlement Agreement by taking affirmative steps to enforce the Default Judgment, specifically by renewing the judgment in 2022 and obtaining a writ of execution in 2025, despite allegedly agreeing not to enforce the Default Judgment so long as Plaintiff complied with the Settlement Agreement. Plaintiff alleges Defendant's conduct caused damages, including a cloud on the title to Plaintiff's real property and impairment of his credit. (Complaint, ¶¶ 37-38.)

Here, Defendant has met his burden under the first prong. Unlike the first cause of action, the protected activity is not merely incidental to or the event that prompted Plaintiff's claim. Rather, Plaintiff expressly identifies Defendant's renewal of the judgment and procurement of the writ of execution as the acts constituting the alleged breach of the Settlement Agreement. Thus, Defendant's judgment-enforcement activity supplies the conduct upon which liability for breach of contract is based.

Defendant's filing and prosecution of judicial proceedings to enforce the judgment constitute protected petitioning activity under Code of Civil Procedure section 425.16, subdivision (e)(2). Thus, Defendant has satisfied his burden under the first prong as to the portion of the second cause of action based upon Defendant's judgment-enforcement activity. The burden therefore shifts to Plaintiff to demonstrate a probability of prevailing as to that claim.

Third cause of action: breach of implied covenant and good faith fair dealing

The third cause of action alleges Defendant breached the implied covenant of good faith and fair dealing by: (1) accepting Plaintiff's payments for years while allegedly intending to later declare them insufficient; (2) representing through his agent that the outstanding debt was \$15,600, thereby inducing Plaintiff to continue making payments; and (3) waiting until the amount allegedly due under the Default Judgment had increased to more than \$130,000 before attempting to enforce the judgment. Plaintiff alleges this conduct deprived him of the benefit of the Settlement Agreement. (Complaint, ¶¶ 39-43.)

The third cause of action constitutes a mixed cause of action because it predicates liability on both protected and unprotected conduct. Plaintiff alleges Defendant acted unfairly by accepting payments for years while allegedly intending to later declare them insufficient, representing that the outstanding debt was \$15,600, and waiting until the amount allegedly due had increased to more than \$130,000 before attempting to enforce the judgment. (Complaint, ¶ 42.)

Under Baral, the inclusion of unprotected activity within the same cause of action does not preclude application of the anti-SLAPP statute to a claim arising from protected activity. (Baral, *supra*, 1 Cal.5th at pp. 393–396.) Thus, Defendant has satisfied his burden under the first prong only as to the claim within the third cause of action predicated on Defendant's judgment-enforcement activity. The burden shifts to Plaintiff to demonstrate a probability of prevailing as to that claim. The remainder of the third cause of action, based on Defendant's alleged acceptance of payments and representations concerning the outstanding balance, does not arise from protected activity and is not subject to the second prong.

Fourth cause of action: accounting

The fourth cause of action alleges the Settlement Agreement required Plaintiff to pay approximately \$31,600, Plaintiff has paid approximately \$24,100, and Defendant claims Plaintiff owes more than \$134,000 based on the Default Judgment. Plaintiff seeks an accounting to determine the remaining balance owed under the Settlement Agreement after crediting all payments made. (Complaint, ¶¶ 44-48.)

Here, Defendant has not demonstrated that the accounting claim arises from protected activity. Although Plaintiff alleges Defendant claims an amount exceeding \$134,000 under the Default Judgment and incorporates preceding allegations concerning Defendant's judgment-enforcement activities, the basis of the accounting claim is the parties' dispute concerning the amount remaining due under the Settlement Agreement and the proper credit for Plaintiff's prior payments. Defendant's

protected judgment-enforcement activities may provide context for the parties' dispute, but they do not supply the basis for Plaintiff's asserted right to an accounting.

Thus, Defendant has not met his burden under the first prong as to the fourth cause of action.

Fifth cause of action: cancellation of instrument

The fifth cause of action alleges Defendant caused an Abstract of Judgment and/or Writ of Execution to be issued and recorded against Plaintiff based on the 2012 Default Judgment. Plaintiff alleges these instruments constitute a cloud on the title to his home and are void or voidable because Defendant's right to enforce the Default Judgment was extinguished or waived by the Settlement Agreement and Defendant's subsequent conduct. Plaintiff seeks an order cancelling the instruments. (Complaint, ¶¶ 49-53.)

Here, Defendant has met his burden under the first prong. The conduct underlying this cause of action is Defendant's procurement and recording of the Abstract of Judgment and Writ of Execution, the very instruments Plaintiff seeks to have cancelled. Here, Defendant's judgment-enforcement activity directly supplies the basis for the relief sought.

Plaintiff's cancellation claim here directly challenges instruments obtained or recorded through Defendant's efforts to enforce the Default Judgment. Thus, Defendant has met his burden under the first prong as to the fifth cause of action, and the burden shifts to Plaintiff to establish a probability of prevailing on the claim.

Second prong: probability of prevailing

Given that Defendant has met his burden under the first prong as to the second cause of action or breach of written contract, the portion of the third cause of action for breach of the implied covenant of good faith and fair dealing based on Defendant's judgment-enforcement activity, and the fifth cause of action for cancellation of instrument, the burden shifts to Plaintiff to demonstrate a probability of prevailing on those claims.

To meet this burden, Plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by Plaintiff is credited. (*Matson v. Dvorak* (1995) 40 Cal.App.4th 539, 548.) This evidentiary showing must consist of competent and admissible evidence. (*Morrow v. Los Angeles Unified Sch. Dist.* (2007) 149 Cal.App.4th 1424, 1444.)

Here, Plaintiff has not filed an opposition to the motion and has submitted no evidence demonstrating a probability of prevailing. Thus, Plaintiff has not met his burden under the second prong as to the second cause of action for breach of written contract and the fifth cause of action for cancellation of instrument. As to the third cause of action, the Court strikes allegation in paragraph 42(c) that Defendant "waited until the interest had ballooned to over \$130,000.00 before attempting to enforce the judgment, thereby effectively trapping Plaintiff." The remainder of the third cause of action, including the allegations in paragraphs 42(a) and 42(b), remains.

Sanctions

Any defendant who prevails on a special motion to strike is entitled to mandatory, reasonable attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c); *Ketchum v. Moses*, (2001) 24 Cal.4th 1122, 1141–1142.) The attorney fees and costs recoverable are only those incurred as to the special motion to strike, and not as to the entire litigation. (*Lafayette Morehouse, Inc. v. Chronicle Pub. Co.* (1995) 39 Cal.App.4th 1379, 1383.)

Defendant submits his own declaration in support of the request. Defendant declares that his hourly rate is \$450.00 and that he spent 4 hours researching the procedural basis and applicable law and 21 hours drafting the motion, preparing his declaration, coordinating exhibits, and preparing the request for judicial notice. Defendant further anticipated spending an additional 5 hours reviewing Plaintiff's opposition, conducting additional research, and preparing a reply, as well as 2.5 hours preparing for and attending the hearing. (Anderson Decl., ¶¶ 19-20.)

The Court finds Defendant's hourly rate of \$450.00 reasonable. However, the Court finds the 25 hours incurred in researching and preparing the motion excessive given the nature and complexity of the issues presented. Further, Defendant prevailed only in part on the motion. The Court therefore reduces the compensable time to account for both the excessive hours claimed and Defendant's limited success. Additionally, because Plaintiff filed no opposition and Defendant filed no reply, the Court declines to award the 5 anticipated hours for reviewing an opposition and preparing a reply.

The Court awards Defendant 6 hours for preparation of the motion and 1 hour for attending the hearing, for a total of 7 hours at \$450.00 per hour, amounting to \$3,150.00 in attorney fees.

The Court awards Defendant a total of \$3,150.00 in attorney fees.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendants' anti-SLAPP motion in part and DENIES in part. The Court further awards Defendant \$3,150.00 in monetary sanctions to be paid within 45 days of this order.

Defendant to give notice.

Dated: August 13, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT